

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201106677	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 05/21/2011 8:28 PM	Location of Incident: § 87(2)(b); 70th Precinct stationhouse	18 Mo. SOL 11/21/2012	Precinct: 70		
Date/Time CV Reported Mon, 05/23/2011 8:19 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 05/23/2011 8:19 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT
2. POM David Bowman	16034	944015	070 PCT
3. POM Patrick Olewinski	03847	937213	070 PCT
4. SGT Jahmel Felipe	01616	931397	070 PCT
5. POM Jonmichel Lobosco	30245	940384	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM David Bowman	Discourtesy: At § 87(2)(b) in Brooklyn, PO David Bowman spoke rudely to § 87(2)(b) and Michel § 87(2)(b)	A . Unsubstantiated
B . SGT Winston Willabus	Force: At § 87(2)(b) in Brooklyn, Sgt. Winston Willabus used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM David Bowman	Force: At § 87(2)(b) in Brooklyn, PO David Bowman used a chokehold against § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . POM David Bowman	Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Jonmichel Lobosco	Force: At § 87(2)(b) in Brooklyn, PO Jonmichel Lobosco struck § 87(2)(b) with an asp.	E . Unsubstantiated
F . POM David Bowman	Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated
G . SGT Jahmel Felipe	Abuse: Abuse of Authority: At the 70th Precinct stationhouse, Sgt. Jamel Felipe did not obtain medical treatment for § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM Patrick Olewinski	Abuse: At the 70th Precinct stationhouse, PO Patrick Olewinski did not obtain medical treatment for § 87(2)(b)	H . Unsubstantiated
I . POM David Bowman	Abuse: At the 70th Precinct stationhouse, PO David Bowman threatened § 87(2)(b) with the use of force.	I . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB's online website on May 23, 2011.

On May 21, 2011, at approximately 8:28 p.m., in front of § 87(2)(b) in Brooklyn, PO Patrick Olewinski of the 70th Precinct issued a summons to § 87(2)(b). But upon discovering that § 87(2)(b) had an open warrant, PO Olewinski arrested him. § 87(2)(b) brothers, § 87(2)(b) and § 87(2)(b) approached the scene. Shortly thereafter, Sgt. Winston Willabus, PO David Bowman, and PO Jonmichel Lobosco of the 70th Precinct arrived. Ultimately, § 87(2)(b) and § 87(2)(b) were also arrested. The following allegations resulted from this incident:

- **Allegation A – Discourtesy: At § 87(2)(b) in Brooklyn, PO David Bowman spoke rudely to § 87(2)(b) and Michel § 87(2)(b)**
- **Allegation B – Force: At § 87(2)(b) in Brooklyn, Sgt. Winston Willabus used physical force against § 87(2)(b)**
- **Allegation C – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used a chokehold against § 87(2)(b) and § 87(2)(b)**
- **Allegation D – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b)**
- **Allegation E – Force: At § 87(2)(b) in Brooklyn, PO Jonmichel Lobosco struck § 87(2)(b) with an asp.**
- **Allegation F – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b) and § 87(2)(b)**
- **Allegation G – Abuse of Authority: At the 70th Precinct stationhouse, Sgt. Jamel Felipe did not obtain medical treatment for § 87(2)(b)**
- **Allegation H – Abuse of Authority: At the 70th Precinct stationhouse, PO Patrick Olewinski did not obtain medical treatment for § 87(2)(b)**
- **Allegation I – Abuse of Authority: At the 70th Precinct stationhouse, PO David Bowman threatened § 87(2)(b) with the use of force.**

§ 87(2)(g) it is recommended that **Allegations A, B, C, D, E, F, G, H, and I be Unsubstantiated.**

This case was originally assigned to Inv. Kathryn Duffy. It was reassigned to the undersigned investigator on April 30, 2012, due to Inv. Duffy's departure from this agency.

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b), and has short brown hair and brown eyes.
- § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on June 6, 2011 (encl. F2-6).

On May 21, 2011, at approximately 8:28 p.m., § 87(2)(b) had just returned home from shopping and was unpacking the bags prior to preparing food for himself. His parents, § 87(2)(b) and § 87(2)(b) were home, as was his § 87(2)(b) brother, § 87(2)(b) and § 87(2)(b) friend, § 87(2)(b). A friend of § 87(2)(b) older brother, § 87(2)(b) stopped by. § 87(2)(b) only knew the friend, “§ 87(2)(b) by his nickname. “§ 87(2)(b) said that he had been out playing basketball with § 87(2)(b) and when they returned to the building, they were drinking juice out of plastic cups. An officer (identified via investigation as PO Patrick Olewinski from the 70th Precinct) had stopped § 87(2)(b) because he had crushed an empty plastic cup and put it in his pocket. The officer pointed out § 87(2)(b) asked what was in his pocket, and called him over to his scooter when § 87(2)(b) took out the cup and showed it to him. Then when § 87(2)(b) did not have identification, PO Olewinski said that he would take him to the stationhouse unless someone could verify his identity. At this point, “§ 87(2)(b) went to the § 87(2)(b) apartment to get § 87(2)(b) s identification.

§ 87(2)(b) didn’t know where to find § 87(2)(b) s identification, but he nevertheless went downstairs to try and prevent § 87(2)(b) s arrest. When he walked out the door, he saw § 87(2)(b) standing next to PO Olewinski, who he described as a white male officer dressed in uniform who stood close to 6’8” tall, was extremely muscular “like the Russian who fights Sylvester Stallone in the Rocky movies,” had blond/ red hair, and appeared to be about 27 years old. PO Olewinski and § 87(2)(b) were standing next to an NYPD scooter that was stopped in the middle of § 87(2)(b) and beginning to clog traffic. § 87(2)(b) approached PO Olewinski and identified himself as § 87(2)(b) s brother. PO Olewinski asked him to verify § 87(2)(b) s name and date of birth, which he did. PO Olewinski wrote down the information and said that he had to run § 87(2)(b) s name for warrants. He told the brothers to wait on the sidewalk, then walked to his scooter, which he backed into a parking spot to allow traffic to pass. He remained inside the scooter for a few minutes while § 87(2)(b) and § 87(2)(b) waited. PO Olewinski called § 87(2)(b) to the scooter, stepped out, and handcuffed him. § 87(2)(b) approached and asked why his brother was being handcuffed, and PO Olewinski said that he had found a warrant for § 87(2)(b) and had to take him in to the stationhouse. Both § 87(2)(b) and § 87(2)(b) understood and were calm and cooperative.

After cuffing § 87(2)(b) PO Olewinski took his belongings, including his keys and wallet, out of his shorts pockets and gave them to § 87(2)(b) for safekeeping. He required § 87(2)(b) to count § 87(2)(b) s money in front of him, and he wrote down the amount of money in his memo book. Then they waited for about ten minutes for backup to arrive to help PO Olewinski transport § 87(2)(b) as he could not fit a prisoner in his scooter. While they waited, three men in a barbershop across the street shouted to the officer, “Where’s your backup?” and laughed. § 87(2)(b) could not identify the men and characterized them as people he would not wish to associate with. While they waited, § 87(2)(b) and § 87(2)(b) came outside and stood on the immediate steps of the front entrance. From approximately eight feet away, they asked § 87(2)(b) what was happening, but he waved them back and said he was dealing with the police and would tell them what had happened when he was finished. § 87(2)(b) and PO Olewinski were standing on the sidewalk outside a gate that surrounds the property, on the left when viewed from the building entrance.

After waiting for between ten and twenty minutes, a marked police car arrived to assist PO Olewinski. Three male officers dressed in uniform, two of whom he identified by name as Sgt. Winston Willabus and PO David Bowman and the third identified via investigation as PO Jonmichel Lobosco of the 70th

Precinct, emerged from the vehicle. Sgt. Willabus was described as a 6'2" tall black male with a slim but "chunky" build. He recognized Sgt. Willabus as a sergeant because he had a different kind of shield than the other officers, had chevrons on his sleeve, and stood behind the front desk when he saw him in the precinct stationhouse later that day. PO Bowman was described as a white male who stood shorter than the other officers and § 87(2)(b) and had a slight frame and reddish brown hair. PO Lobosco was a white male who was also short in stature with a small build, but was bald. Neither PO Bowman nor PO Lobosco had glasses, facial hair, tattoos, or other distinguishing characteristics. PO Olewinski immediately guided § 87(2)(b) directly past the other officers and into the back of the marked vehicle.

Sgt. Willabus passed PO Olewinski and § 87(2)(b) without speaking to PO Olewinski, and instead walked straight to § 87(2)(b) and asked him what was going on. § 87(2)(b) responded that his brother had a warrant, and explained that he understood that he needed to go to the stationhouse to address the warrant, but wondered aloud why PO Olewinski had stopped him in the first place if all that he had was an empty cup. Sgt. Willabus began to answer that § 87(2)(b) needed to deal with his warrant regardless of the reason for the initial stop, but PO Bowman interjected and told § 87(2)(b) to "shut the fuck up." § 87(2)(b) looked at PO Bowman and said, "Well, if you're going to be disrespectful there's no point in talking to you. I'm going to go," and he turned around and began to walk back toward the building.

§ 87(2)(b) passed § 87(2)(b) and § 87(2)(b) entered the first door to the building (a door that the public can access and is unlocked but leads to a lobby that contains intercoms and is secured by a second, locked door) and reached into his pocket to get his keys and open the second door. At some point, § 87(2)(b) and § 87(2)(b) had stepped further into the building and were inside the lobby. § 87(2)(b) then heard someone coming up behind him and heard someone outside (not his brother, but possibly one of several men whom he could not identify who had been playing basketball with § 87(2)(b) prior to him being stopped by PO Olewinski) shout, "He's coming up behind you!" § 87(2)(b) turned and looked over his shoulder but did not turn his whole body. He saw Sgt. Willabus push § 87(2)(b) and § 87(2)(b) aside and rush up to his back, where he grabbed at the left side of his neck with his left hand and pushed him against a wall in the lobby. § 87(2)(b) thrust his hands in front of him toward the wall to brace himself and keep his balance, and Sgt. Willabus grabbed the side of § 87(2)(b)'s body (still from behind) and punched him in the lower left cheek. § 87(2)(b) never physically resisted or tried to defend himself but moved his body about as a result of the push and from an attempt to maintain his balance during that time.

At some point while his body was turned enough to see what was happening on the other side of the lobby, § 87(2)(b) saw PO Bowman inside the doorway. PO Bowman pushed § 87(2)(b) to the side and grabbed § 87(2)(b) who did not appear to be resisting as he was standing and not doing anything. PO Bowman punched § 87(2)(b) twice in the face, on the left cheek below his eye, but § 87(2)(b) did not see everything that led to the punches because he was still engaged with Sgt. Willabus, who was grabbing and pulling his body in an apparent attempt to place him on the ground. However, he did not give § 87(2)(b) any verbal instructions and § 87(2)(b) continued to try to maintain his balance and to remain standing. PO Lobosco approached with a baton and began to hit § 87(2)(b) with it on both legs. § 87(2)(b) dropped when struck by the baton. Once § 87(2)(b) was on the floor, Sgt. Willabus handcuffed him and then sat on his back, which prevented him from breathing. § 87(2)(b) who was still in the lobby, shouted, "He can't breathe," to the officers, and then went through the door and into the building. § 87(2)(b) later learned that § 87(2)(b) had left to get their father, § 87(2)(b) § 87(2)(b) Sgt. Willabus got up off of § 87(2)(b) and stood him up. He held one of § 87(2)(b) handcuffed arms

while PO Lobosco held the other. PO Bowman then crossed the hallway toward him, and punched him directly in the nose, which caused bleeding and significant pain. § 87(2)(b) later learned that he had sustained a nasal bone fracture in the course of the incident and believed the cause was the punch by PO Bowman.

§ 87(2)(b) returned to the lobby with § 87(2)(b) § 87(2)(b) after § 87(2)(b) and § 87(2)(b) were both handcuffed, and § 87(2)(b) § 87(2)(b) asked § 87(2)(b) what had happened. He answered that the officers had attacked him for no reason, and his father advised him to be quiet and compliant, and pointed out that the video cameras in the lobby would have captured everything. Sgt. Willabus took § 87(2)(b) § 87(2)(b) aside and spoke to him, and § 87(2)(b) heard him say, “That’s nothing. It’s not the first time I’ve been on camera, but I’m still here.” Officers who § 87(2)(b) could not identify escorted him and § 87(2)(b) out of the lobby and outside, where he could see that numerous police units, both marked and unmarked, had responded to the incident (although he had never heard Sgt. Willabus or the other officers ask for assistance). Cars seemed to have entered § 87(2)(b) which is a one-way street, from both directions and shut down the block to civilian traffic. § 87(2)(b) observed that the crowd seemed to have grown much larger over the course of the incident, and he believed there were more than 30 people gathered outside by the time he came out. § 87(2)(b) and § 87(2)(b) were led to police vehicles. Someone in the crowd heckled Sgt. Willabus and said something like “How could you do that to your own people?” Sgt. Willabus responded to the crowd, “I’m not your kind of black.” § 87(2)(b) was still handcuffed and waiting in the back of a vehicle, and § 87(2)(b) was placed in the back of a marked car operated by an officer he had not seen before, with PO Lobosco as the front passenger. He, § 87(2)(b) and § 87(2)(b) were all transported separately to the 70th Precinct stationhouse and arrived sometime after 9:00 pm. As far as § 87(2)(b) knew, they were the only people arrested during the incident.

§ 87(2)(b) nose continued to bleed throughout the transport, and he was bloody when presented at the front desk of the 70th Precinct stationhouse. He asked the desk officer, identified via investigation as Sgt. Jahmel Felipe of the 70th Precinct, if he could get medical treatment for his bleeding nose. Sgt. Felipe’s physical attributes were not described. Sgt. Felipe advised him to wait until he was settled in the cell area, and then his arresting officer would take care of him. While § 87(2)(b) and § 87(2)(b) waited for their arrest processing to begin, they witnessed an argument behind the desk between PO Olewinski and PO Bowman. PO Bowman told PO Olewinski that since the initial arrest of § 87(2)(b) had been his, he was also responsible for the paperwork for § 87(2)(b) and § 87(2)(b). PO Olewinski was upset and said that he had the situation under control, and that the other two arrests would never have happened had PO Bowman, PO Lobosco, and Sgt. Willabus not started the incident. The two officers became so heated that they had to be separated by other stationhouse personnel.

Later, before he was taken to the holding cell area, § 87(2)(b) asked Sgt. Felipe again about medical treatment. Sgt. Felipe said he was about to end his tour and that it wasn’t his responsibility. Later, when PO Olewinski was processing his arrest, § 87(2)(b) addressed the issue of medical care with him. However, PO Olewinski said he was in the midst of processing the arrest paperwork and that the medical treatment would have to wait until he was finished. He was held in the cell area along with § 87(2)(b) and § 87(2)(b) and at first they were the only three prisoners in custody. Later, more prisoners began to trickle in to the stationhouse, and by the end of their stay there were a total of seven men (including the original three) in the cell area. § 87(2)(b) felt that the other men who had been arrested were “not right,” and he was afraid of them and didn’t speak to them. They all would have seen the amount of blood covering § 87(2)(b) and heard him ask repeatedly for medical treatment, as would two female prisoners who were kept in the adjacent cell, which was within arm’s

reach of the men's cell and faced into it. At one point he asked a detective who was escorting another prisoner whether he could call an ambulance and arrange medical treatment, but the detective said that was the responsibility of his arresting officer.

Eventually, at what § 87(2)(b) estimated to be between 2:00 a.m. and 3:00 a.m., a female officer dressed in uniform came to the cells and announced that she was taking the whole group of prisoners to Central Booking. He and all the rest of the prisoners, including § 87(2)(b) and § 87(2)(b) went to Brooklyn Central Booking. § 87(2)(b) asked a corrections officer about medical treatment, but the corrections officer informed him that he was just about to see a judge and would probably be able to get treatment faster if he went through his hearing and then went to the hospital independently. He saw the judge, who offered him an adjournment in contemplation of dismissal that would seal the arrest in six months, but he declined and said he would rather fight the charges. He, § 87(2)(b) and § 87(2)(b) were all released after seeing the judge, and § 87(2)(b) § 87(2)(b) who had followed from the stationhouse to Central Booking, took them back to the 70th Precinct stationhouse to collect their property. Immediately after the stationhouse, § 87(2)(b) § 87(2)(b) brought § 87(2)(b) to § 87(2)(b), § 87(2)(b)

§ 87(2)(b) In addition to his visit to § 87(2)(b), § 87(2)(b) saw a dentist at § 87(2)(b) at the intersection of § 87(2)(b). § 87(2)(b)

§ 87(2)(b) could not identify any specific witnesses with the exception of "§ 87(2)(b) because he did not know the names of anyone in the crowd. He believed the incident was captured on security video in the building lobby, but he did not know the name of the management company to contact to obtain the footage. A few days after the incident, an older white female who § 87(2)(b) believed lives in apartment § 87(2)(b) on the first floor of his building asked him about the incident and implied that she had seen it and knew he was involved. He could not identify her by name but thought he remembered where she lived. § 87(2)(b) estimated that the incident lasted from thirty to forty minutes from the time that he went downstairs until he was placed in a police vehicle.

Statements to Medical Provider

According to § 87(2)(b) records, § 87(2)(b) stated to medical staff on § 87(2)(b), that he was assaulted by officers with a nightstick to his upper limbs and punch to his face. § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) told § 87(2)(b) that he was assaulted by the police two days before with a nightstick to his upper extremities and a punch to the face (encl. J1).

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who stands § 87(2)(b), and has brown hair and brown eyes.
- § 87(2)(b).

CCRB Testimony

§ 87(2)(b) provided an in-person statement June 8, 2011 (encl. G2-5), and a phone statement on June 28, 2011 (encl. G7). § 87(2)(g)

After ten to twenty minutes passed since § 87(2)(b) left to check on § 87(2)(b) and § 87(2)(b) decided to go outside and see what was keeping § 87(2)(b). When they reached the front door to the building, they saw § 87(2)(b) on the sidewalk talking to PO Olewinski. As they spoke, Sgt. Willabus, PO Bowman, and PO Lobosco arrived in a police vehicle, and PO Olewinski backed away from § 87(2)(b) to place § 87(2)(b) in that vehicle. § 87(2)(b) described Sgt. Willabus as a black male officer who stood 6'4" tall with a muscular build and a gold badge who looked like "a big L.L. Cool J." PO Bowman was a white male officer dressed in uniform who § 87(2)(b) thought was of Irish descent, stood about 6'0" tall, was clean-cut and had a muscular build. PO Lobosco was a white male officer dressed in uniform who stood about 5'5" tall, had a muscular build, and was bald.

When § 87(2)(b) walked away from PO Bowman and Sgt. Willabus after speaking with them, § 87(2)(b) and § 87(2)(b) stayed on the stoop, so they were able to see Sgt. Willabus immediately move to follow § 87(2)(b). As Sgt. Willabus passed him, § 87(2)(b) said, "He didn't do nothing," and Sgt. Willabus used his right arm to push § 87(2)(b) to the right and continued into the building foyer. § 87(2)(b) and § 87(2)(b) followed behind Sgt. Willabus into the foyer. Sgt. Willabus approached behind § 87(2)(b) grabbed him by the back of the neck with his left hand, and grabbed at the right side of his body with his right hand, and said "Do you know who you're talking to?" He then pushed § 87(2)(b) forward, and § 87(2)(b) could see that § 87(2)(b) was bracing himself against the wall by holding his hands out in front of him. § 87(2)(b) said, "Why are you grabbing me?"

§ 87(2)(b) thought that § 87(2)(b) appeared to be turning around toward Sgt. Willabus when PO Bowman came into the foyer behind § 87(2)(b) and § 87(2)(b) pushed them both to the wall facing him, and held them both against the wall by their throats, with his left hand on § 87(2)(b) and his right hand on § 87(2)(b). PO Bowman asked, "Are you kidding me? Are you bucking? You're walking up behind a cop!" § 87(2)(b) could not speak or breathe, and PO Bowman was pushing them upwards so that both § 87(2)(b) and § 87(2)(b) were forced up on their toes with their backs against the foyer wall. § 87(2)(b) swatted at PO Bowman's arm with his hand, and pushed the officer's hand from his throat by grabbing his hand from above and pushing it down off his neck. When he had removed PO Bowman's hand from the chokehold around his throat, § 87(2)(b) said, "I can't breathe! We're not resisting you!" PO Bowman released § 87(2)(b) to focus on § 87(2)(b). PO Bowman punched § 87(2)(b) three or four times on the left side of his face beneath the eye. The blows did not break the skin but caused swelling that later turned to a bruise. § 87(2)(b) put his hands in the air to show that he was not resisting, and PO Bowman grabbed and handcuffed his hands and cuffed him as § 87(2)(b) scurried to the side and began to pick up items that had fallen out of his and § 87(2)(b)'s pockets. When § 87(2)(b) was cuffed, PO Bowman left him where he was standing and moved to the left side of the foyer to help Sgt. Willabus with § 87(2)(b) who was now lying facedown on the ground.

PO Bowman passed § 87(2)(b) who was in his way, and used his open palm to grab § 87(2)(b) by the face and push him away to the side. § 87(2)(b) ran over to the lobby door, which requires a key to enter. § 87(2)(b) and § 87(2)(b) saw that PO Lobosco was now in the foyer and was hitting § 87(2)(b) in the calves with a nightstick while Sgt. Willabus appeared to be sitting or squatting on his back and pulling upward on the back of his collar. § 87(2)(b) thought

Sgt. Willabus was “choking out” § 87(2)(b) by holding a nightstick to his throat and pulling upward, and he and § 87(2)(b) both shouted, “He can’t breathe!” to the officers. § 87(2)(b) ran through the lobby door and upstairs. PO Bowman went to § 87(2)(b) who was still struggling beneath Sgt. Willabus and PO Lobosco, and punched him in the face. This caused a nosebleed. § 87(2)(b) yelled to try to stop the officers from using force against him, but PO Bowman told him to “shut the fuck up and get in the corner,” and § 87(2)(b) backed up. PO Bowman punched § 87(2)(b) in the face again, while he was secured in handcuffs. However, § 87(2)(b) returned a moment later with his father, § 87(2)(b) § 87(2)(b) in tow. § 87(2)(b) § 87(2)(b) asked Sgt. Willabus, “What is the cause of all of this?” and Sgt. Willabus told him that the boys had been resisting arrest. The officers made no attempt to arrest § 87(2)(b) who had returned to the scene of the incident with his father.

§ 87(2)(b) thought that he, § 87(2)(b) and § 87(2)(b) were placed in the back of a patrol car together, but he was uncertain, and knew for certain only that he had ridden with § 87(2)(b) PO Lobosco was the front passenger of the vehicle, and the operator was a Hispanic male officer who § 87(2)(b) had not seen during the incident. He noticed that three or four additional cars had arrived at the incident location and estimated that eight or nine officers were present in total, including PO Olewinski, Sgt. Willabus, PO Bowman, and PO Lobosco. In the car, he told PO Lobosco that what the officers had done was wrong and that he was going to complain. PO Lobosco told him that was between him and the city, but the “70th Precinct is cracking down, so even if § 87(2)(b) won [a lawsuit he would] still be living with [his] mother.”

The three were held in the holding cell area for several hours. § 87(2)(b) was extremely angry that they were being processed and sent to Central Booking for “resisting arrest,” which was the only charge he knew of, because he felt that there was no reason to have arrested them in the first place and that “resisting arrest” was a fabricated charge. Because of how he felt, he stared at PO Bowman, who was in the holding cell area with PO Olewinski, the officer who had initially stopped § 87(2)(b) but who had not been a participant in the rest of the incident, because he stayed next to § 87(2)(b) to secure him. After some time, PO Bowman noticed the looks § 87(2)(b) was giving him, because he asked, “What? You want to fight me?” PO Bowman said that he would take off his badge, his baton, and his gun, enter the cell, and kick § 87(2)(b) s ass. This outburst prompted the argument between PO Olewinski and PO Bowman about arrest processing.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male.

§ 87(2)(b) provided the following information over the telephone during a conversation with Inv. Duffy on June 15, 2011 (encl. S5). He initially said that he was exiting the apartment building when officers “choked” him. Later, he said that he and the officers were both entering the building and that an officer grabbed his throat, preventing him from speaking or breathing. After thirty to forty seconds, the officer released his grip and “went after” § 87(2)(b) at which point § 87(2)(b) went to get § 87(2)(b) § 87(2)(b)

Prior to his statement, a letter and six messages were left for § 87(2)(b) from May 26, 2011, to June 13, 2011. After his phone conversation on June 15, 2011, another message was left for him on June 20, 2011. The letter sent to his address has not been returned by USPS, and as of the date of this report, he has not responded to contact attempts.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male.

§ 87(2)(b) provided a phone statement to Inv. Duffy on June 1, 2011 (encl. H1). § 87(2)(g)

At some point, § 87(2)(b) believed that someone called his brothers, and § 87(2)(b) approached PO Olewinski with § 87(2)(b) identification and provided other “information” that was not specified. Eventually, PO Olewinski told § 87(2)(b) that he had a warrant in regards to a summons in the Bronx, and was handcuffed. § 87(2)(b) signed off on § 87(2)(b) property, and § 87(2)(b) stood by the police scooter as a police vehicle, occupied by Sgt. Willabus, PO Bowman, and PO Lobosco, arrived. When § 87(2)(b) was placed in the police vehicle, the officers spoke with § 87(2)(b) and PO Bowman said, “Shut the fuck up and let him talk.” § 87(2)(b) walked away towards the apartment building thereafter. Sgt. Willabus ran towards § 87(2)(b) from behind and “attacked” him. PO Bowman and PO Lobosco followed, along with § 87(2)(b) and § 87(2)(b). The latter pair said something to the effect of, “Why [are] you beating on § 87(2)(b) and PO Bowman grabbed them by their throats, slammed them against a wall, then started “attacking” them.

Prior to his phone statement, a letter and voicemails were left with § 87(2)(b) on May 26, 2011, the following day, and on May 31, 2011. After a third call and his subsequent phone statement, two additional voicemails were left on June 9, 2011, and June 13, 2011. The letter sent to his address has not been returned by USPS, and as of the date of this report, he has not responded to contact attempts.

Witness: ANONYMOUS WITNESS # 1

- Anonymous Witness # 1 (hereinafter AW1), is a black male who has black hair and brown eyes, and wore a black hat, a white t-shirt, blue jean shorts, and black sneakers during his statement.
- § 87(2)(b)

Invs. Duffy, Wang, and Asencio spoke with AW1 in front of § 87(2)(b) on July 21, 2011 (encl. I1). On the date of the incident, AW1 was working, giving a haircut at the time of the incident. He said that he looked outside and noticed when § 87(2)(b) was given a summons. AW1 did not know § 87(2)(b) by name and he did not see how the interaction started, but saw him waiting beside a police scooter for about twenty minutes. AW1 did not pay attention to this the whole time, because he was working. When he next noticed the activity outside, there was a “commotion” inside the lobby of § 87(2)(b) which he could not see but could hear shouting from inside the barbershop. It was dark outside at the time and that there is no visibility into the § 87(2)(b) lobby from the barber shop. There was a lot of commotion and that there was a scuffle between some police officers and some of the boys who were later arrested. Several other boys were videotaping the incident on mobile phones and cameras from the street. There are numerous “kids” out on both sides of the street every night, but he did not know any of them by name and said many come from elsewhere to hang out at § 87(2)(b). AW1 declined to provide his name or to provide a statement on the record.

Witness: ANONYMOUS WITNESS # 2

- *Anonymous Witness # 2 (hereinafter AW2) is a black male in his 30s who stands 6'0" to 6'1", has a medium to heavy build, a full beard, and wore shorts, sandals, sports jersey, and a do-rag at the time of his statement.*

AW2 spoke with Invs. Duffy, Wang, and Asencio in the vicinity of § 87(2)(b) on July 21, 2011 (encl. I1). On the incident date, AW2 did not see how the incident began, but while standing outside § 87(2)(b) with a large group of people, he saw at least one officer push one boy (he could not identify the boy) against the wall of the lobby "hard." When the boys had been handcuffed and were led to police vehicles, a white male officer with blonde hair told one of the boys (he could not recall which) to "get in the fucking car." He thought that he had described the officer who said that remark, but upon second thought he said that he was not sure which officer said this. He could not describe the officers who were present. He said that many people videotaped the incident and that he believed the recording was on YouTube. However, he did not know anyone personally who had videotaped it and did not know what the YouTube heading might be. Later in his statement, AW2 stated that he was inside the barbershop at the time of the incident but it was not clear if he was a patron or an employee. AW2 declined to provide his name or to provide a statement on the record.

Witness: § 87(2)(b)

- § 87(2)(b)

Inv. Duffy spoke with § 87(2)(b) inside the lobby of § 87(2)(b) on July 21, 2011 (encl. I1). He did not know anything about building security cameras and denied any recollection of the incident. He said that the boys hanging around outside the building created a lot of trouble and were "disrespectful." He said that he often called the police to deal with the teenagers and young adults outside. There was often open drinking and drug use among the young people outside the building, and officers were known to patrol there regularly without being called. He was not willing to provide his full name or make a statement on the record.

Attempts to Contact Civilians

On July 21, 2011, Invs. Duffy, Wang, and Asencio canvassed the street outside § 87(2)(b) where they spoke with AW1, AW2, and § 87(2)(b) (encl. I1). In front of § 87(2)(b) they spoke with an unidentified white male wearing a white t-shirt and shorts as depicted in the enclosed photograph (encl. C5). He did not witness this incident.

From June 8, 2011, to June 13, 2011, three voicemails were left with § 87(2)(b) and § 87(2)(b) for information to their apartment building's management company in order to obtain video footage. On June 14, 2011, § 87(2)(b) provided a telephone number to their building's landlord, § 87(2)(b). The following day, Inv. Duffy called and spoke with § 87(2)(b) who said that he would look at the footage to see if anything was captured. On June 20, 2011, upon a follow up call, § 87(2)(b) said that he was unable to download video footage at the time.

A review of the 70th Precinct's prisoner holding pen roster revealed several individuals that were held at the stationhouse with § 87(2)(b) and § 87(2)(b) and § 87(2)(b). On August 2, 2011, letters were mailed to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) A Lexis Nexis search produced no telephone numbers or address to any of them, except for alternate addresses to § 87(2)(b) and § 87(2)(b). Letters to § 87(2)(b) and § 87(2)(b) were returned by the USPS, and a second letter was mailed to the latter and to § 87(2)(b) on September 7, 2011. The second letter to § 87(2)(b) was returned by the USPS. As of the date of this report, none have responded.

NYPD Statements:

Subject Officer: PO PATRICK OLEWINSKI

- PO Olewinski is a § 87(2)(b)-old white male who § 87(2)(b), and has blond hair and blue eyes.
- He was on-duty from 7:30 p.m. on May 21, 2011, to 4:05 a.m. on May 22, 2011, assigned to a motor scooter by himself and in uniform.

Memo Book

PO Olewinski wrote extensive memo book entries in regards to this incident, which is reflected in his CCRB testimony, with additional information added (encl. K1-6).

Complaint and Arrest Reports

§ 87(2)(a) 160.50

§ 87(2)(b) and § 87(2)(b) interfered with PO Olewinski's work by approaching the officer in a very close distance while performing an arrest. Both individuals congregated with approximately seven others and surrounded PO Olewinski, placing the officer in fear of his safety. § 87(2)(b) and § 87(2)(b) then refused to comply with a lawful order to disperse after being told numerous times by PO Olewinski. § 87(2)(b) resisted arrest by kicking and fighting with the officer performing the arrest. § 87(2)(b) resisted arrest by preventing his hands from being cuffed by the officer performing the arrest. It was noted that force was not used and their physical conditions appeared normal. § 87(2)(a) 160.50

CCRB Testimony

PO Olewinski was interviewed at the CCRB on October 7, 2011(encl. K20-22).

On May 21, 2011, at 8:25 p.m., PO Olewinski was travelling southbound on § 87(2)(b) in his scooter when he observed § 87(2)(b) standing on the steps leading to the front entrance of § 87(2)(b). § 87(2)(b) was accompanied by approximately seven to ten unidentified individuals and he was holding a clear plastic cup half-filled with liquor. PO Olewinski believed that it was liquor based on his professional training, and exited his scooter to approach § 87(2)(b) and to see the cup. Upon exiting, § 87(2)(b) simultaneously placed his left hand and the cup in his left pocket in such a manner that the liquid did not spill. PO Olewinski instructed him to remove the cup from his pocket, and after complying, PO Olewinski smelled the cup, which smelled like alcohol. He asked what it was and § 87(2)(b) replied that it was Hennessy. PO Olewinski asked § 87(2)(b) to step away from the building and towards his scooter, where the officer asked for his identification. § 87(2)(b) stated that he did not have identification and said, "Just arrest me." Two to three minutes later, as PO Olewinski was writing § 87(2)(b)

§ 87(2)(b) name and information, § 87(2)(b) exited § 87(2)(b) ran alone towards PO Olewinski, identified himself as § 87(2)(b) brother, asked what was going on, and said that he § 87(2)(b) lived in the building. PO Olewinski, who was uncertain if § 87(2)(b) was amongst the seven to ten individuals that had stood with § 87(2)(b) at the onset of this incident, told him to step away on the sidewalk and that he was going to verify § 87(2)(b) name, and he complied. § 87(2)(b) was not present at this time.

§ 87(2)(b) warrant check returned positive, and PO Olewinski arrested him, explaining that a warrant was found. The seven to ten unidentified individuals who stood in front of the building then walked towards PO Olewinski and verbally disputed the situation or arrest with him, yelling statements that included, “He wasn’t drinking...You don’t know what you’re doing...You have no right to arrest § 87(2)(b)”. At some point during this time, PO Olewinski felt surrounded. § 87(2)(b) and § 87(2)(b) were also present. PO Olewinski told the group to move back to give him some space, but they refused. Each time they moved away, they walked back in front of PO Olewinski. He then told them that they were obstructing his work while performing an arrest. As PO Olewinski had a scooter, he contacted Sgt. Willabus to verify his arrest and to request transport for § 87(2)(b). The group, including § 87(2)(b) and § 87(2)(b) continued to approach closer and dispute the incident, talking loudly and causing a crowd to gather, even behind his back at a very close distance. PO Olewinski noted during his interview that he assumed § 87(2)(b) was amongst this group as he was later arrested, but he did not recall specifically observing him present at that time. There were also several individuals standing in the middle of the street and across the street. PO Olewinski, who feared for his safety, told them numerous times to stop standing close to him and to leave or go home. He reiterated that they were interfering with his work and that they could get arrested or summonsed for obstructing pedestrian traffic or failure to comply with a lawful order to disperse. At some point during this time, while PO Olewinski searched § 87(2)(b) after handcuffing him, § 87(2)(b) stood one foot away from them and said, “What’re you doing? You cannot do [that].” None of the individuals physically intervened during this time.

Approximately five minutes later, Sgt. Willabus, PO Bowman, and PO Lobosco arrived and PO Olewinski told the sergeant that he stopped § 87(2)(b) for possession of an open container of alcohol and that he had an open warrant. Sgt. Willabus instructed PO Olewinski to place § 87(2)(b) in the patrol car. Numerous unidentified individuals continued to stand and surround the officers, and PO Bowman and PO Lobosco maintained crowd control. Numerous individuals amongst the crowd continued to verbally dispute the arrest with Sgt. Willabus, PO Bowman, and PO Lobosco, telling the officers that they had no right to arrest him and that he was not observed drinking. Those three officers addressed the crowd and said that § 87(2)(b) had to be taken to the stationhouse where the situation would be resolved. Before PO Olewinski placed § 87(2)(b) into the patrol car, he searched him a second time, at which point he heard individuals say, “What the fuck?” and “What the fuck are you guys doing?” Meanwhile, Sgt. Willabus called for § 87(2)(b) in order to issue him a summons for an unspecified offense, but § 87(2)(b) walked away. Sgt. Willabus attempt to grab § 87(2)(b) who faced the sergeant but pulled his hands away from him towards the lobby of § 87(2)(b). He did not see what else § 87(2)(b) physically did thereafter. § 87(2)(b) then ran towards Sgt. Willabus in an apparent attempt to separate the sergeant from § 87(2)(b) but PO Olewinski did not recall how this was physically done. PO Bowman intervened and handcuffed § 87(2)(b) on the steps of the building entrance while Sgt. Willabus and § 87(2)(b) moved towards the lobby.

PO Olewinski attempted to approach and assist the officers, but the crowd stood in his way, and he told them to step aside. It was at this point he heard the door of the patrol being opened, and he saw § 87(2)(b)

§ 87(2)(b) attempting to exit the vehicle; PO Olewinski assumed that § 87(2)(b) opened the door himself as the patrol car did not have its child-locks activated. He went back to the patrol car and secured § 87(2)(b) in the patrol car. He was unaware of what was occurring by the building during this time.

Thereafter, PO Olewinski observed § 87(2)(b) and § 87(2)(b) pushing Sgt. Willabus, PO Bowman, and PO Lobosco, who were attempting to handcuff the pair by placing them against a wall; he noted that it appeared that they were going “from wall to wall” of the lobby in their attempt to arrest them. § 87(2)(b) also flailed his arm during this time. PO Olewinski did not observe another male individual by the lobby during this time. He did not observe an officer with their batons or asps drawn and he did not see Sgt. Willabus place § 87(2)(b) in a chokehold. PO Olewinski radioed a 10-85 for additional units. § 87(2)(b) and § 87(2)(b) were handcuffed by PO Bowman and Sgt. Willabus, respectively, and additional units were no longer required to respond to the scene.

Upon arrival at the stationhouse, PO Olewinski did not see any visible injuries or bleeding on § 87(2)(b) or § 87(2)(b) and none of the prisoners complained of any injury or for medical treatment. PO Olewinski noted that the three prisoners made fun of him with statements that he did not recall, and that they joked about fighting with Sgt. Willabus.

PO Bowman told PO Olewinski that he was assigned the arresting officer for § 87(2)(b) and § 87(2)(b). PO Olewinski told PO Bowman that he did not want to be their arresting officer because he “had control until you guys (referring to PO Bowman, PO Lobosco, and Sgt. Willabus) arrived.” He added during his interview that an officer who handcuffs an individual “should be” the arresting officer. PO Olewinski then spoke about this with Sgt. Willabus on the side at approximately 9:15 p.m., and the sergeant said that he had to take the arrest of § 87(2)(b) and § 87(2)(b) and to charge both with § 87(2)(b).

Subject Officer: SGT. WINSTON WILLABUS

- Sgt. Willabus is a § 87(2)(b)-old Hispanic male who § 87(2)(b), and has black hair and brown eyes.
- On May 21, 2011, he was on-duty from 9:15 a.m. on May 21, 2011, to 4:27 a.m. on May 22, 2011, assigned as the spike supervisor, in uniform and in marked patrol car 5041, and with PO Bowman and PO Lobosco.

Memo Book

On May 21, 2011, at 8:30 p.m., Sgt. Willabus responded to § 87(2)(b). At 8:50 p.m., three individuals were under arrest at that location. At 9:00 p.m., he arrived at the 70th Precinct stationhouse (encl. L1-3).

CCRB Testimony

Sgt. Willabus was interviewed at the CCRB on November 4, 2011 (encl. L4-6). § 87(2)(g).

On May 21, 2011, at approximately 8:30 p.m., Sgt. Willabus was dispatched to verify an arrest made by PO Olewinski, who found a positive warrant check for § 87(2)(b). Upon his arrival, PO Olewinski stood with § 87(2)(b) who was in handcuffs and leaned against the officer’s scooter. There were approximately ten individuals outside, with four to five of them having a verbal confrontation with PO Olewinski, stating that he should not have stopped or arrested § 87(2)(b). PO Olewinski told Sgt.

Willabus that he stopped § 87(2)(b) for having a Styrofoam cup of alcohol and then found a positive warrant check. § 87(2)(b) asked Sgt. Willabus if he could speak with him, and the sergeant agreed, stepping a few feet away from PO Olewinski and § 87(2)(b).

§ 87(2)(b) told Sgt. Willabus that § 87(2)(b) was arrested for a “bad cause” and that there was no reason to arrest him. Sgt. Willabus explained that § 87(2)(b) had been stopped for having an open container of alcohol and a subsequent warrant check was positive. § 87(2)(b) replied that § 87(2)(b) should never have been stopped because there was no liquor in the cup upon PO Olewinski’s approach. The sergeant replied that regardless of whether or not there was alcohol, § 87(2)(b) had to address the warrant and he might be released the following day. § 87(2)(b) raised his voice and continued to say that the officers should never have stopped § 87(2)(b) because there was no liquor in the cup. Sgt. Willabus said, “If you want to have a conversation with me, we’ll have a conversation. If you want to go to come back to the Precinct, we could even talk there. But I’m not going to sit out here and listen to you yell and scream because now everyone’s starting to watch and wonder what’s going on. If you want to have a conversation with me, we’ll have a conversation. Otherwise, go about your business.” During this time, several individuals made fun of PO Olewinski, telling him that he used steroids and that he was having “roid rage.” § 87(2)(b) continued to yell and Sgt. Willabus told him four to five times to stop yelling as a crowd began to grow. Eventually, Sgt. Willabus told him that if he kept yelling, cursing, and continuing with his current demeanor, he would be taken to the stationhouse because he was being disorderly, adding, “If you can’t talk to me like a human being, then you’re coming with us. This is your last time, if you don’t leave, then you’re going to come with us.” § 87(2)(b) continued to say that they had no right to arrest § 87(2)(b). § 87(2)(b) Sgt. Willabus said, “Now you’re coming with us,” and reached for § 87(2)(b) arms to handcuff him, but § 87(2)(b) ran towards § 87(2)(b) before Sgt. Willabus could actually touching him.

Sgt. Willabus followed § 87(2)(b) into the building, placing him against the wall in the vestibule. After placing a cuff on his left arm, § 87(2)(b) turned around and pushed Sgt. Willabus’ chest with both palms, causing him to step back once. Sgt. Willabus continued to reach and grab § 87(2)(b) arms to place them behind his back, but he pulled away. At this point, § 87(2)(b) entered the vestibule, followed by PO Bowman; a third civilian may have entered as well, but Sgt. Willabus was uncertain. Sgt. Willabus wrestled to control § 87(2)(b) arms, going from “wall to wall”, but eventually placed him face down on the floor with his left arm behind his back. During this time, PO Bowman was “struggling” to handcuff § 87(2)(b) but Sgt. Willabus did not see what was exactly happening as he was preoccupied with apprehending § 87(2)(b). He was uncertain what the third civilian did during this time. Additionally, numerous civilians stood in front of the vestibule entrance from outside and appeared to attempt to enter, but PO Lobosco entered and prevented any further individuals from entering. Sgt. Willabus placed his weight onto § 87(2)(b) as he pulled out his right arm from underneath his body, and successfully handcuffed him; no other officer assisted him. PO Bowman handcuffed § 87(2)(b). Sgt. Willabus was unaware of the third individual’s whereabouts at this time, and he did not recall if he was ever arrested.

He denied ever drawing or utilizing his asp, or placed an asp against any civilian during this incident. PO Lobosco had his asp drawn, but Sgt. Willabus did not see how this officer used it. Sgt. Willabus denied observing any civilian having been punched in the face.

An individual who approached the officers and identified himself and § 87(2)(b) father, identified via investigation as § 87(2)(b) § 87(2)(b) asked them what was going on. Sgt. Willabus told him to go to the precinct and he would inform him of what happened.

At the stationhouse, while standing by the front desk, § 87(2)(b) said that he wanted to go to the hospital but he did not complain of any specific injury. He had a scratch or abrasion on forehead, but it was not bleeding and Sgt. Willabus did not see any other visible injury on him. Sgt. Willabus told him that he had to wait to be registered with the command first, and then he would have EMS examine him. § 87(2)(b) was then under the custody of his arresting officer and Sgt. Willabus never had any further contact with him and was unaware of his whereabouts or if he requested medical treatment a second time. At some point in the stationhouse, PO Bowman expressed to Sgt. Willabus an issue with PO Olewinski never assisting them in the vestibule. Sgt. Willabus noted that PO Olewinski likely did not assist them because he had to secure § 87(2)(b) and thus was unable to do so.

Subject Officer: PO DAVID BOWMAN

- PO Bowman is a § 87(2)(b)-old white male who § 87(2)(b), and has brown hair and blue eyes.
- On May 21, 2011, he was on-duty from 9:30 a.m. to 6:05 p.m., assigned to overtime duty, in uniform, with PO Lobosco and Sgt. Willabus in a marked patrol car.

Memo Book

On May 21, 2011, at 8:30 p.m., PO Bowman responded to a request for additional units (10-85) at § 87(2)(b). At 8:50 p.m., three individuals were under arrest (encl. M1-2).

CCRB Testimony

PO Bowman provided an in-person statement at the CCRB on December 9, 2011, and on August 13, 2012 (encl. M3-6).

PO Bowman, PO Lobosco, and Sgt. Willabus responded to the location, where PO Bowman noted that there had been recent shootings and drug activity in the vicinity. PO Bowman, PO Lobosco, and Sgt. Willabus approached the group and told them to disperse several times, but they did not comply, and disputed § 87(2)(b) arrest. § 87(2)(b) asked the officers what the warrant was in regards to. PO Bowman, PO Lobosco, and Sgt. Willabus said that they did not know and that he could go to the stationhouse to speak with § 87(2)(b) about it, but § 87(2)(b) “didn’t want to hear it.” § 87(2)(b) was repeatedly instructed to leave but he did not.

Sgt. Willabus told § 87(2)(b) he was arresting him for disorderly conduct and attempted to grab him. However, § 87(2)(b) flailed his arms, coming within inches of an officer’s face; PO Bowman did not recall who that officer was. § 87(2)(b) then ran into the building, where Sgt. Willabus and PO Lobosco followed him into the vestibule. As Sgt. Willabus attempted to grab § 87(2)(b) arms to handcuff him, § 87(2)(b) flailed his arms, jumped around, and attempted to kick PO Lobosco’s face. PO Bowman ran into the vestibule, where § 87(2)(b) entered, but he did not recall if this person came from within the building or from outside. Another individual may have been present but he was uncertain as the scene was “very chaotic.” At this point, a crowd of approximately five to ten individuals attempted to enter the vestibule, but PO Bowman, with his back to the officers, placed his hand and foot against the vestibule door to prevent them from entering.

PO Bowman placed § 87(2)(b) and § 87(2)(b)s backs against a wall with his hands on their chests. Both individuals then pushed his hands away and Sgt. Willabus and PO Lobosco attempted to handcuff § 87(2)(b) while PO Bowman attempted to handcuff § 87(2)(b). While Sgt. Willabus and PO Lobosco attempted to handcuff § 87(2)(b) § 87(2)(b) jumped on one of the two officers’ back and swung his arms at them. The other unidentified individual also jumped on

one of the officers' back during this time. § 87(2)(b) had his arms wrapped around the officer's neck from behind, in an apparent attempt to separate him from § 87(2)(b). PO Bowman was not struck and he was unaware if his partners were struck.

After § 87(2)(b) swung his arm at one of the officers, PO Bowman punched § 87(2)(b) once in the face and attempted to handcuff him by grabbing his arms. He affirmed that this was the only instance he ever struck § 87(2)(b) and denied ever striking § 87(2)(b). § 87(2)(b) "squared off" with him by pulling his shoulders back and flailing and swinging his arms, but PO Bowman eventually pulled his arms down to the ground and successfully handcuffed him; no other officer or civilian were physically involved during this process. In combination with the crowd attempting to enter the vestibule by the entrance doors, § 87(2)(b)'s swinging at the officers had placed PO Bowman in fear of his safety. § 87(2)(b) who had not stopped resisting arrest, was then handcuffed by Sgt. Willabus or PO Lobosco; PO Bowman was unable to see what physical actions were performed to handcuff § 87(2)(b) because he had his back to them as he handcuffed § 87(2)(b). PO Bowman was unaware of the unidentified individual's whereabouts by this point, but he assumed that he had fled while § 87(2)(b) was handcuffed. PO Olewinski and § 87(2)(b) never entered the vestibule during this incident. At some point, § 87(2)(b) or § 87(2)(b) said something about hammers, and PO Bowman said something to the effect of, "I'm not doing anything wrong. I'm doing my job. You're the one fighting uniformed cops."

As they escorted § 87(2)(b) and § 87(2)(b) to the patrol car, the officers told the crowd that "it was just a return on a warrant," but he did not recall interacting with any specific person. None of the prisoners appeared visibly injured, and they did not request any medical treatment after they were handcuffed and transported to the stationhouse. At the stationhouse, the officers brought § 87(2)(b) and § 87(2)(b) to the front desk and resumed patrol; PO Bowman did not interact with § 87(2)(b) any further. He denied threatening § 87(2)(b) with the use of force, specifically, saying anything to the effect of intending to "kick [his] ass," and he denied hearing any officer utter any similar remark. PO Bowman denied ever placing his hands on the throat of any civilian, including those arrested, in this incident. He did not observe Sgt. Willabus or PO Lobosco strike any of the civilians at any point, and denied using his baton or asp or see another officer use said instruments. He denied using any profanity.

Subject Officer: PO JONMICHEL LOBOSCO

- PO Lobosco is § 87(2)(b)-old Hispanic male who § 87(2)(b), and has brown hair and brown eyes.
- He was on-duty from 7:30 p.m. on May 21, 2011, until 4:05 a.m. the following day, assigned to spike overtime, in uniform and in a marked patrol car with PO Bowman and Sgt. Willabus.

Memo Book

On May 21, 2011, at 8:30 p.m., PO Lobosco responded to a request for additional units at § 87(2)(b). At 8:50 p.m. PO Olewinski placed three individuals under arrest (encl. N1-3).

CCRB Testimony

PO Lobosco was interviewed at the CCRB on January 13, 2012 (encl. N4-5).

Sgt. Willabus verified PO Olewinski's arrest. In the meantime, § 87(2)(b) persistently asked why § 87(2)(b) was being arrested. PO Lobosco took the prisoner, § 87(2)(b) to a police vehicle with another officer. As he was finishing putting § 87(2)(b) in the vehicle, he heard Sgt. Willabus say "I'm going to place you under arrest," apparently to § 87(2)(b).

§ 87(2)(b) walked into the lobby of § 87(2)(b) and the officers proceeded to try to arrest him there, but he struggled. § 87(2)(b) and § 87(2)(b) entered the lobby and began to fight with the officers. PO Lobosco later clarified that they had all entered the lobby prior to him, and that Sgt. § 87(2)(b) and likely PO Bowman were already in the lobby trying to handcuff § 87(2)(b). § 87(2)(b) and § 87(2)(b) entered afterwards, and PO Lobosco entered last to see Sgt. Willabus and PO Bowman struggling with the three civilians. PO Olewinski stayed outside and never entered the lobby. When PO Lobosco entered the lobby, § 87(2)(b) had disappeared, and he assumed that he had proceeded from the lobby through the locked door into the building.

PO Lobosco stayed by the door to the lobby and held it closed by bracing his foot against it. He did this because the crowd outside was trying to enter the lobby of § 87(2)(b) to interfere with the arrest of § 87(2)(b). Sgt. Willabus was trying to arrest § 87(2)(b) and PO Bowman was trying to arrest § 87(2)(b) both of whom were struggling. PO Lobosco's attention was focused on the people outside, who were trying to get in, but he noticed that § 87(2)(b) arms kept flailing and that he was yelling and cursing with Sgt. Willabus. PO Lobosco did not think Sgt. Willabus ever moved to the ground, and he did not see anyone using an asp as a bar to choke § 87(2)(b). PO Bowman was to PO Lobosco's right, struggling, and at one point the struggle moved to the ground as § 87(2)(b) tried to fight him. At some point, PO Lobosco's asp fell out of its holster to the floor as the struggle went on. He assisted PO Bowman by using his asp to hold down § 87(2)(b)'s legs at the ankles. § 87(2)(b) had been kicking and struggling while lying on the floor, and PO Lobosco used his asp as a bar to keep him from kicking and hurting the officers or himself. § 87(2)(b) was then cuffed and two were taken to a police vehicle and arrested. PO Lobosco denied using the asp to strike anyone. He also denied seeing § 87(2)(b) engaged in a physical struggle of any kind with police officers.

Subject Officer: SGT. JAHMEEL FELIPE

- Sgt. Felipe is a § 87(2)(b)-old black male who § 87(2)(b), and has black hair and hazel eyes.
- On May 21, 2011, he was on-duty from 2:50 p.m. to 11:47 p.m., assigned as the desk officer at the 70th Precinct stationhouse in uniform.

Memo Book

Sgt. Felipe had no memo book entries regarding this incident (encl. O1-2).

CCRB Testimony

Sgt. Felipe was interviewed at the CCRB on July 26, 2012 (encl. O3-4). He had no recollection of this incident. He reviewed the 70th Precinct's command log of the incident date, and he affirmed that he was the desk officer from 8:00 p.m. until at least 10:44 p.m. Sgt. Felipe did not recall an incident where three prisoners § 87(2)(b) and § 87(2)(b) were brought to the stationhouse, and that § 87(2)(b) asked at least one officer for medical attention. He did not recall any other prisoner asking him for medical attention during this incident date, and he did not recall observing any injury to any prisoner. Sgt. Felipe affirmed that if he observed any injury to a prisoner, he would request EMS to respond to the stationhouse. He affirmed that at the stationhouse, the desk officer, not the arresting officer or the arrest officer's supervisor, would be responsible for obtaining medical treatment to a prisoner. He did not recall observing any EMS at the stationhouse during this tour. Sgt. Felipe was shown arrest photographs of § 87(2)(b) and § 87(2)(b) but he did not recognize them.

Medical Records

§ 87(2)(a) PHL § 18(6)

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NYPD Documents

SPRINT

Sprint job S14676 (encl. Q1) shows that on May 21, 2011, at 8:28 p.m., PO Olewinski stopped § 87(2)(b) at § 87(2)(b). Three minutes later, a warrant check shows an active warrant for § 87(2)(b). At 8:44 p.m., PO Olewinski requested one additional unit to respond to the location, and requested verification for an arrest. At the same time, Sgt. Willabus radioed that he was responding. At 8:50 p.m., a 70th Precinct unit radioed that they were transporting § 87(2)(b) and § 87(2)(b) to the stationhouse. Eight minutes later, the three prisoners were removed from the vehicle, and the officers resumed patrol. The arrests were verified at 11:48 p.m.

Command Log

The 70th Precinct command log (encl. Q2-3) shows that Sgt. Felipe was on desk duty on May 21, 2011, at 8:00 p.m. At 9:00 p.m., § 87(2)(b) and § 87(2)(b) were brought to the stationhouse. The physical or mental condition for all three were listed as “apparently normal” and it was noted that none requested medical attention. They were transported to Brooklyn Central Booking the following day at 3:40 a.m.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of August 7, 2012, with regard to the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilians' CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) Jr (encl. B1-2).

Subject Officers' CCRB History

- PO Olewinski has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. A1).
- Sgt. Willabus has been a member of the service for eight years and there is one substantiated CCRB allegations against him (encl. A2-3).
 - In CCRB case 200700641, he did not receive any disciplinary action for detaining an individual.
- PO Bowman has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. A4-5).
- PO Lobosco has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. A6).
- Sgt. Felipe has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. A7).

Conclusion

Identification of Subject Officers

PO Olewinski, Sgt. Willabus, PO Bowman, and PO Lobosco acknowledged interacting with § 87(2)(b) and § 87(2)(b). Additionally, their physical attributes match the civilians' descriptions of them. Sgt. Felipe was identified as he affirmed being on-duty as the desk officer during the time the three prisoners were brought to the stationhouse.

Allegations Not Pled

§ 87(2)(g) § 87(2)(b) alleged that as he was escorted out of the building, Sgt. Willabus said, "I'm not your kind of black" towards the crowd that gathered. However, § 87(2)(b) was unable to identify any of these individuals, and none of the civilians interviewed made this allegation.

Investigative Findings and Recommendations

Allegation A – Discourtesy: At § 87(2)(b) in Brooklyn, PO David Bowman spoke rudely to

§ 87(2)(b) and Michel § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) stated that PO Bowman told them to “shut the fuck up.” However, PO Bowman denied using any profanity, § 87(2)(g) it is recommended that **Allegation A** be **Unsubstantiated**.

Allegation B – Force: At § 87(2)(b) in Brooklyn, Sgt. Winston Willabus used physical force against § 87(2)(b)

It is undisputed that Sgt. Willabus initially placed § 87(2)(b) against a lobby wall of the incident location. § 87(2)(b) alleged that Sgt. Willabus grabbed the side of his body from behind and punched him in the lower left cheek. However, the sergeant denied performing said actions, and neither § 87(2)(b) nor any other person supported or refuted either claim. § 87(2)(g) it is recommended that **Allegation B** be **Unsubstantiated**.

Allegation C – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used a chokehold against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that PO Bowman came into the foyer behind § 87(2)(b) and § 87(2)(b) pushed them both to the wall facing him, and held them both against the wall by their throats, with his left hand on § 87(2)(b) and his right hand on § 87(2)(b) § 87(2)(b) could not speak or breathe, and PO Bowman was pushing them upwards so that both § 87(2)(b) and § 87(2)(b) were forced up on their toes with their backs against the foyer wall.

§ 87(2)(b) did not cooperate with the investigation, § 87(2)(g) § 87(2)(b) stated that as he faced the lobby wall, he turned around and saw PO Bowman push § 87(2)(b) to the side and grabbed § 87(2)(b) but he did not specify such an action as a choke.

PO Bowman stated that he placed § 87(2)(b) and § 87(2)(b)s backs against a wall with his hands on their chests. He then said that both individuals then pushed his hands away, and Sgt. Willabus and PO Lobosco attempted to handcuff § 87(2)(b) while PO Bowman attempted to handcuff § 87(2)(b) § 87(2)(g). Neither Sgt. Willabus nor PO Lobosco saw PO Bowman place § 87(2)(b) or § 87(2)(b) in any sort of chokehold.

§ 87(2)(g) it is recommended that **Allegation C** be **Unsubstantiated**.

Allegation D – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b)

It is undisputed that PO Bowman punched § 87(2)(b) who alleged that the officer punched him three or four times on the left side of his face beneath the eye. § 87(2)(b) corroborated that the officer punched § 87(2)(b) in the same area twice. PO Bowman testified that after § 87(2)(b) swung his arm at Sgt. Willabus or PO Lobosco, he punched him once in the face and attempted to handcuff him.

§ 87(2)(g)

it is recommended that
Allegation D be Unsubstantiated.

Allegation E – Force: At § 87(2)(b) in Brooklyn, PO Jonmichel Lobosco struck § 87(2)(b) with an asp.

§ 87(2)(g) § 87(2)(b) alleged that PO Lobosco hit both of his legs with a baton. Meanwhile, PO Lobosco said that his asp fell out of its holster to the floor as the officers were attempting to handcuff § 87(2)(b) and § 87(2)(b). The officer then assisted PO Bowman by using his asp to hold down § 87(2)(b)'s legs at the ankles. § 87(2)(b) had been kicking and struggling while lying on the floor, and the asp was used as a bar to keep him from kicking and hurting the officers or himself. § 87(2)(g)

Allegation F – Force: At § 87(2)(b) in Brooklyn, PO David Bowman used physical force against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that after he was handcuffed, PO Bowman punched him in the nose. § 87(2)(b) was consistent in reporting this to the CCRB and to medical staff. Meanwhile, § 87(2)(b) said that PO Bowman punched him after he was handcuffed. But § 87(2)(b) also stated that he only saw PO Bowman punch § 87(2)(b) before he was handcuffed. All of the officers denied that PO Bowman punched § 87(2)(b) and denied punching or striking § 87(2)(b) after he was handcuffed. § 87(2)(g)

it is recommended that
Allegation F be Unsubstantiated.

Allegation G – Abuse of Authority: At the 70th Precinct stationhouse, Sgt. Jamel Felipe did not obtain medical treatment for § 87(2)(b)

Allegation H – Abuse of Authority: At the 70th Precinct stationhouse, PO Patrick Olewinski did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) testified that once he was brought to the 70th Precinct stationhouse, he asked Sgt. Felipe if he could get medical treatment for his bleeding nose, but the sergeant advised him to wait until he was settled in the cell area, and then his arresting officer would take care of him. § 87(2)(b) then asked PO Olewinski about medical treatment, and the officer replied that it would have to wait until their arrest paperwork were completed. However, Sgt. Felipe testified that he did not recall this incident in any manner, and PO Olewinski denied that § 87(2)(b) ever asked him for medical treatment.

§ 87(2)(g)

it is recommended that
Allegations G and H be Unsubstantiated.

Allegation I – Abuse of Authority: At the 70th Precinct stationhouse, PO David Bowman threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that while he was in a holding cell, PO Bowman said that he would take off his badge, baton, and gun, enter the cell, and kick § 87(2)(b)'s ass., which prompted the officer's verbal argument with PO Olewinski. However, PO Bowman denied making any such remarks to § 87(2)(b) and § 87(2)(b) made no mention of it. § 87(2)(g)

it is recommended that **Allegation I be Unsubstantiated.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date